

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA

Tentative Ruling

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**202200567741CUOE: Briana Sandez vs. Miners Ace Hardware Inc**

**07/08/2026 in Department 44**

**Motion for Approval of Private Attys General Act (Cal Labor Code 2698 et seq) Settlement  
agreement and Award of Atty Fees and Costs**

**Department Rules.** Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

**Remote Appearances.** The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

**ZOOM Registration Link:**

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuOqs-9TQXgEQ>

No advance notice is required to appear in person.

**Tentative Rulings.** Oral argument should address the tentative decision. To submit on the tentative decision, email [courtroom44@ventura.courts.ca.gov](mailto:courtroom44@ventura.courts.ca.gov) before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

**Motion:**

Plaintiff’s Motion to Approve PAGA Settlement

**Tentative Ruling:**

Plaintiffs’ Motion for Settlement Approval of the pending lawsuit alleging a violation of the Private Attorneys General Act (Labor Code § 2698 et seq.) is **CONTINUED to Wednesday, August 26, 2026 at 1:30 p.m.**

The Court finds that the moving papers are deficient in the areas noted below. At least 10 days in advance of the continued proceeding, Plaintiff may submit supplemental materials in support of the Motion. To the extent the Court identifies missing information that has been previously been provided, counsel shall identify with specificity where such information has been provided (e.g., by document, exhibit, page and line number):

A. **Proposed Monetary Settlement Summary:**

| Description                                  | Proposed Amounts |
|----------------------------------------------|------------------|
| Gross Settlement Amount                      | \$500,000        |
| Less: Attorney Fees (40% of Gross Settlement | \$200,000        |

|                                                               |           |
|---------------------------------------------------------------|-----------|
| Amount)                                                       |           |
| Less: Costs not to exceed (to date: \$33,646.12)              | \$35,000  |
| Less: Administrative Costs not to exceed (estimated: \$7,628) | \$10,000  |
| Less: PAGA Penalties                                          | \$257,372 |
| Less: Service Award                                           | \$7,500   |
| Net PAGA Settlement                                           | \$249,872 |
| PAGA Split 75% to LWDA                                        | \$187,404 |
| PAGA Split 25% to Aggrieved Employees                         | \$62,468  |

**B. Reasons for Continuance**

1. The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum may exceed 15 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules, 2.256(b) and 3.1110(f).) Counsel's compliance with these rules greatly aids in the review of papers filed with the Court, and also avoids delay in the Court's issuance of a decision on the merits. Noncompliance with these rules may cause delay in approval, or the Court to disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d).])
2. A summary of the settlement, including the manner in which it was valued and how the settlement meets the standards set forth in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56. This discussion should specify the maximum and realistic exposure estimate for each claim asserted in the operative complaint; explain the underlying assumptions for those estimates (for example, the number of PAGA pay periods, whether initial or subsequent penalties are sought, whether the estimate is premised on stacking, etc.); describe the defenses asserted by Defendant(s); provide a summary of the risks, expenses, and duration of further litigation if the settlement is not approved; specify any discounts/reductions applied to arrive at a realistic exposure; and any other relevant factors justifying the amount offered in settlement.
3. Moving counsel must provide a copy of Plaintiff's notice letter(s) to the LWDA and evidence that the settlement was provided to the LWDA. A statement in counsel's declaration alone is not sufficient. Proof in the form of a confirmation email from the LWDA must be provided.

4. The estimated average amount that aggrieved employees will receive as their share of the penalty distribution. The parties shall also provide the total number of work weeks (or pay periods) and the estimated amount each aggrieved employee will receive per work week (or pay period).
5. Whether the settlement provides for a *cy pres* distribution and, if so, a declaration demonstrating the propriety of the *cy pres* recipient and distribution under Code of Civil Procedure section 384. (When there are uncashed checks, the Court routinely approves and strongly prefers the unclaimed funds go to appropriate *cy pres* organizations. In some cases, if no such charity is appropriate, the Court may approve payment to the State Controller's Unclaimed Property Fund in the name of the intended recipient.) Explain why any *cy pres* distribution fulfills the purposes of the lawsuit or is otherwise appropriate. (*State of California v. Levi Strauss & Co.* (1986) 41 Cal.3d 460, 472; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 722.) The moving parties must also declare whether they have an interest in the *cy pres* recipient, including its governance.
6. Discussion of the settlement administration process and procedures.
7. Description of the impact of the settlement on pending litigation, if any.
8. A Proposed Order Granting Approval of the PAGA Settlement, and a Proposed Judgment, including retaining jurisdiction over implementing the terms of the settlement, such as requiring the filing of a final report on distributions made to the aggrieved employees. A Proposed Judgment should not include a dismissal or any findings not contained in the Approval Order. The Proposed Order should also include a proposed settlement compliance hearing date (to occur on a Wednesday at 1:30 p.m.).